name Balasahebanchi Shiv Sena (or Balasaheb's Shiv Sena) and the symbol of 'two swords and a shield'. Both have been denied the parent party's symbol: the 'bow and arrow'.

But the battle for the Shiv Sena and its founder Bal Thackeray's legacy is far from over. On August 23, the Supreme Court had referred petitions filed by the Uddhav- and Shinde-led factions, which raised constitutional questions related to defection, merger and disqualification, to a five-judge bench. While the apex court is still dealing with the matter, it had dismissed a petition by Uddhav's faction to stop the EC from deciding on Team Shinde's claim to the party name and symbol.

On October 8, the EC—unable to decide which of the two represents the original party—barred both the factions from using the party name or its symbol for the Andheri East assembly bypoll scheduled on November 3. While Shinde enjoys the support of 40 of the 55 party MLAs and 12 of the 22 MPs, Uddhav has the backing of most of the office-bearers. The new names were allotted on October 10, along with the symbol, to Uddhav's faction. The CM's group had to wait for another day, as all its three preferences for a symbol were rejected and options were sought afresh.

Shinde, after the allotment of the party name, wrote on Twitter that it proved "we are the inheritors of Balasaheb's thoughts". At a first glance, it seems Uddhav has lost the opportunity to lay exclusive claim to the legacy of his father, popularly known as Balasaheb. But his close aide and Lok Sabha member Arvind Sawant claims the Sena's supporters will start associating themselves with Team Uddhav "very soon". "Everyone knows that Shiv Sena means Balasaheb Thackeray. Uddhavji is his real heir," he reasons.

As the first among the three preferences submitted to the EC, both the factions had sought to be named as the Shiv Sena (Balasaheb Thackeray). Uddhav, on October 9, went live on social media to share his faction's list of proposed names, while Shinde chose to go into a huddle with his trusted aides. The following day, the EC allotted the two their respective second preferences due to a tied first choice. For Shinde, "the name Balasaheb's Shiv Sena itself suggests it's a party that carries the lineage of the great man," says political analyst Hemant Desai. But he is quick to add that "it is only a perception". "The decision on who the real political heir is will depend on how the two factions fare in upcoming elections."



MANDAR DEODHAR

HIGH STAKES Uddhav Thackeray at a Dussehra rally in Mumbai, Oct. 5

The first test for both the factions is the November 3 bypoll. It precedes elections to 15 resource-rich municipal corporations, including Mumbai and Thane, 200 municipal councils and 30 zilla parishads in the next couple of months. Uddhav's son Aaditya has announced that their faction will take the 'flaming torch' symbol to each household in the coming days. The group is likely to field Rutuja Latke, the widow of former MLA Ramesh Latke whose death necessitated the bypoll. The Shinde faction is as yet undecided on whether to go solo or contest the bypoll with the BJP. In all probability, the two will field a joint candidate, but it's not clear whether from the Balasahebanchi Shiv Sena or the BJP.

THE PERCEPTION BATTLE COULD OVERSHADOW THE LEGAL BATTLE FOR THE CLAIM TO SENA'S LEGACY

The stakes are high. The result of this perception battle can virtually overshadow the ongoing legal battle for the claim to 'legacy'. Uddhav's supporters point to the Sena's first "lucky" tryst with the '*mashaal*' when Chhagan Bhujbal, now a Nationalist Congress Party leader, had won an assembly election with the same symbol in 1985. As the Shiv Sena had no dedicated symbol back then, its leaders had fought the polls on various symbols. Bhujbal was the only one elected. The party was allotted the 'bow and arrow' only in 1989. But it is to be seen whether the 'flaming torch' can light up the beleaguered outfit's prospects and help Uddhav retain his father's legacy.

For Shinde and the BJP, a failure will be a huge embarrasement. But for Uddhav, it could mark the beginning of an end to his political career. ■